

26STCV01564 26STCV01564

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Case Number: 26STCV01564 Hearing Date: September 17, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 17, 2026

CASE NUMBER: 26STCV01564

CASE NAME: Amitiss Nasiri v. Rhett P. Warner, Esq.

MOVING PARTY: Defendant Rhett P. Warner

OPPOSING PARTY: Plaintiff Amitiss Nasiri

PROCEEDING: DEMURRER TO COMPLAINT

RULING

SUMMARY: The demurrer is SUSTAINED, with leave to amend. Plaintiff must file an amended complaint within 10 days of this Ruling. The Court continues the Case Management Conference to, and sets an Order to Show Cause Re: Amended Complaint for, _____, 2026, at 8:30AM.

Background

Plaintiff

Amitiss Nasiri filed this legal malpractice action against defendant Rhett P. Warner, Esq. on September 17, 2026, asserting claims for (1) legal malpractice and (2) breach of fiduciary duty; he also asserts "Punitive Damages – Civil Code § 3294" as a third, independent cause of action. Plaintiff alleges

Defendant substituted in for Plaintiff's prior counsel to represent him in Los Angeles Superior Court Case No. YC072653 ("Underlying Action") beginning on February 19, 2021. As alleged, after undertaking representation, Defendant missed filing deadlines that resulted in evidentiary sanctions imposed by the trial court, an adverse judgment, and a failed appeal.

Defendant filed a Demurrer to Plaintiff's complaint on May 15, 2026. Plaintiff filed his Opposition on September 1, 2026, and on September 10, 2026 Defendant filed a Reply.

DEMURRER

I. Legal Standard

Where pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer for sufficiency tests whether the complaint alleges facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10; Young v. Gannon (2002) 97 Cal.App.4th 209, 220.) When considering a demurrer, a court reads the allegations stated in the challenged pleading liberally and in context, and "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Put differently: for purposes of demurrer, the court treats all facts alleged – but only the facts alleged – in the complaint as true. (Picton v. Anderson Union High School District (1996) 50 Cal.App.4th 726, 732.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

II. Meet and Confer

Defendant's counsel states that he attempted to meet and confer by telephone, but the number for Plaintiff's counsel as stated on his complaint does not function. (Rubin Decl., ¶ 4.) Code of Civil Procedure section 430.41 is satisfied.

III. Request for Judicial Notice

Defendant

requests judicial notice of five entries in the case file for the Underlying Action. The request was submitted along with Defendant's reply, and Plaintiff objects he did not have sufficient time to respond.

The

Court grants the request despite its late submission. Defendant's demurrer relies on judicially noticeable facts that placed Plaintiff on notice of his arguments; the filings in the Underlying Action are judicial records plainly subject to notice, and Plaintiff's complaint concedes he was aware of all the underlying facts. The Court finds that taking judicial notice causes no prejudice to Plaintiff.

III. Discussion

Defendant argues (1) the first cause of action is time-barred and uncertain or unintelligible; (2) the second cause of action fails to state sufficient facts and duplicates the first; and (3) Plaintiff's claim for punitive damages is not an independently cognizable cause of action.

First Cause of Action for Legal Malpractice

The Amended Judgment in the underlying action was filed on October 25, 2022.

Plaintiff appealed by counsel other than Defendant in this case. Plaintiff has not alleged that Defendant represented Plaintiff at any time after October 25, 2022. This action was filed on September 17, 2026, almost four years after entry of judgment in the underlying action. Civil Code section 340.6(a) provides that an action against an attorney for a wrongful act or omission other than fraud, arising in the performance of professional services must be brought "within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, whichever occurs first." As Plaintiff was represented by other counsel after October 25, 2022 and during the course of the appeal, the Complaint does not adequately allege grounds to toll the statute of limitations under section 340.6. Moreover, many if not all of the acts or omissions on which the first cause of action is based occurred well before October 25, 2022 (many occurred even before Defendant was substituted in as Plaintiff's counsel), which would mean that the four-year outside limitation period would apply.

For the reasons explained above, the demurrer to the first cause of action is sustained with leave to amend.

Breach of Fiduciary Duty

The limitations period applicable to the first cause of action also applies to the second cause of action. Therefore, the demurrer to the second cause of action is also sustained with leave to amend.

The second cause of action does not allege sufficient facts to support the claim for breach of fiduciary duty. Therefore, the demurrer to the second cause of action is sustained on that ground as well, with leave to amend.

Punitive Damages

A claim for punitive damages does not constitute a cause of action. Moreover, such damages are not recoverable on a claim for attorney malpractice, which is based upon acts or omissions that fall below the standard of care. Plaintiff has failed to plead any claims that contain factual allegations constituting oppression, fraud or malice. Therefore, the demurrer to the third cause of action is sustained. Plaintiff must pray for punitive damages, and allege facts supporting them, within causes of action that would support such claims.

Conclusion

Defendant's

demurrer is SUSTAINED WITH LEAVE TO AMEND as to the first and second causes of action and SUSTAINED WITHOUT LEAVE TO AMEND as to the third cause of action. Plaintiff is ordered to file an amended pleading within 10 days. The Court continues the Case Management Conference to, and sets an Order to Show Cause Re: Amended Complaint for, _____, 2026, at 8:30AM.

Date: September
17, 2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court